



Endangered Species (Import and Export) Act 1976

1976 CHAPTER 72

An Act to restrict the importation and exportation of certain animals, plants and items and to restrict certain transactions in respect of them or their derivatives; to confer on the Secretary of State power to restrict by order the places at which live animals may be imported; to restrict the movement after importation of certain live animals; and for connected purposes.

[22nd November 1976]

WHEREAS a Convention on International Trade in endangered Species of Wild Fauna and Flora (in this Act referred to as the Convention) was signed at Washington on 3rd March 1973, was presented to Parliament in November 1973 and came into force in the United Kingdom on 31st October 1976:

And whereas it is expedient to give effect in the United Kingdom to the restrictions on international trade contained in the Convention and to make certain other provisions in connection with the conservation of endangered animals and plants:

Now, therefore, be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (2) below, the importation and exportation of the following things are hereby prohibited, namely—

- (a) a live or dead animal of any of the kinds to which Schedule 1 to this Act for the time being applies ;

Restriction of importation and exportation of certain animals and plants.

(b) a live or dead plant of any of the kinds to which Schedule 2 to this Act for the time being applies ;

(c) an item to which Schedule 3 to this Act for the time being applies.

(2) Subsection (1) above does not apply to the importation or exportation of anything under and in accordance with the terms of a licence issued by the Secretary of State.

(3) The Secretary of State shall submit any application for a licence under subsection (2) above to whichever one of the scientific authorities (as defined in section 2 below) he considers is the best able to advise him as to whether a licence should be issued in pursuance of the application and, if so, its terms ; and, before he issues or declines to issue a licence in pursuance of the application, he shall allow the authority a reasonable time so to advise him.

(4) A licence issued under subsection (2) above—

(a) may be, to any degree, general or specific,

(b) may be modified or revoked at any time by the Secretary of State, and

(c) subject to paragraph (b) above, shall be valid for a period of 12 months commencing with the date the licence is issued or such shorter period as is stated in the licence.

(5) The Secretary of State may charge for the issue of a licence under subsection (2) above such sum (if any) as is for the time being prescribed by order of the Secretary of State.

(6) A person who, for the purpose of obtaining, whether for himself or another, the issue of a licence under subsection (2) above,—

(a) makes a statement or representation which he knows to be false in a material particular,

(b) furnishes a document or information which he knows to be false in a material particular,

(c) recklessly makes a statement or representation which is false in a material particular, or

(d) recklessly furnishes a document or information which is false in a material particular,

shall be liable on summary conviction to a fine not exceeding £400 or on conviction on indictment to imprisonment for a term not exceeding two years or a fine, or both.

(7) Where a licence is issued under subsection (2) above and, for the purpose of obtaining its issue, a person commits an offence under subsection (6) above, the licence shall be void.

(8) Where—

- (a) any live or dead animal or plant, or
- (b) an item to which Schedule 3 to this Act for the time being applies,

is being imported or exported or has been imported or brought to any place for the purpose of being exported, a person commissioned by the Commissioners of Customs and Excise or a person authorised by them may require any person possessing or having control of the animal, plant or item to furnish proof that its importation or exportation is or was not unlawful by virtue of this section; and if such proof is not furnished to the satisfaction of the said Commissioners the animal, plant or item shall be liable to forfeiture under the Customs and Excise Act 1952 c. 44. 1952.

2.—(1) The Secretary of State may—

Scientific
authorities.

- (a) establish any body or bodies, consisting in each case of such members as he may from time to time appoint;
- (b) assign to any other body or bodies the duty referred to in subsection (4) below.

(2) Without prejudice to his power under subsection (1) above, the Secretary of State shall, as soon as practicable after this subsection comes into operation,—

- (a) establish at least one body under paragraph (a) of subsection (1) above, or
- (b) assign to at least one body, under paragraph (b) of that subsection, the duty referred to in subsection (4) below.

(3) A reference in this Act to a scientific authority is a reference to a body which is established under subsection (1) above or to which the duty there referred to is assigned under that subsection.

(4) It shall be the duty of a scientific authority to advise the Secretary of State on any question which he may refer to it, and on any question on which it considers it should offer its advice,—

- (a) in connection with the administration of this Act;
- (b) generally in connection with the importation and exportation of animals and plants of kinds which appear to him or, as the case may be, the authority to be, or to be likely to become, endangered as a result of international trade, and items derived wholly or partly from animals and plants of those kinds.

(5) In so far as it does not have power to do so apart from this subsection, any scientific authority may publish reports relating to the performance by it of its duty under subsection (4) above.

(6) Before appointing a person to be a member of a scientific authority established under subsection (1)(a) above, the Secretary of State shall consult such persons or bodies, or persons and bodies, as he thinks fit.

(7) The Secretary of State may, to such extent as may be approved by the Treasury, defray or contribute towards the expenses of any scientific authority established under subsection (1)(a) above; and any sums required by the Secretary of State for that purpose shall be paid out of money provided by Parliament.

Power to
modify
Schedules.

3. The Secretary of State may, after consulting any scientific authority or authorities, by order make such modifications in any of the Schedules to this Act as he considers necessary or desirable for any of the following purposes, namely—

- (a) to give effect to any amendment to the Convention made in pursuance of its provisions;
- (b) to give effect to the inclusion of anything in or the withdrawal of anything from Appendix III to the Convention (kinds of animals and plants the trade in which a party identifies as needing international control) at the instance of any party to the Convention;
- (c) to promote the conservation of animals or plants of any kind which appears to the Secretary of State to be, or to be likely to become, endangered as a result of international trade;
- (d) to remove any restriction which is for the time being imposed by virtue of this Act on the importation and exportation of animals or plants of any particular kind or of any particular items and which does not in the opinion of the Secretary of State promote such conservation as is referred to in paragraph (c) above;
- (e) to facilitate the more effective or more convenient administration of any restriction which is for the time being imposed by virtue of this Act on the importation and exportation of animals or plants of any particular kind or of any particular items.

Offence
to sell etc.
things
imported
contrary
to section 1
or their
derivatives.

4.—(1) Subject to subsection (2) below, a person who sells, offers or exposes for sale, has in his possession for the purpose of sale, or displays to the public,—

- (a) anything which has been imported contrary to section 1 above, or

- (b) anything which is made wholly or partly from anything referred to in paragraph (a) above and which at the time of the alleged offence (though not necessarily at the time of importation) constitutes an item to which Schedule 3 to this Act for the time being applies,

shall be guilty of an offence ; and in the following provisions of this section a “restricted article” means anything falling within paragraph (a) or (b) above.

(2) A person shall not be guilty of an offence under subsection (1) above with respect to a restricted article if he proves to the satisfaction of the court—

- (a) that at the time when it first came into his possession he made such enquiries (if any) as in the circumstances were reasonable in order to ascertain whether it was a restricted article, and
- (b) that, at the time the alleged offence was committed, he had no reason to believe that it was a restricted article.

(3) Without prejudice to the generality of subsection (2)(a) above, a person shall be taken to have made such enquiries as are there mentioned if he produces to the court a certificate which was furnished by the person from whom the accused obtained possession of the restricted article (the supplier), which was signed by the supplier or by a person authorised by him, and which states that—

- (a) the supplier made enquiries at the time the restricted article came into his possession in order to ascertain whether it was a restricted article, and
- (b) the supplier had no reason to believe at the time he relinquished possession of the restricted article to the accused that the article was at that time a restricted article.

(4) A person who furnishes for the purposes of subsection (3) above a certificate which he knows to be false in a material particular, or recklessly furnishes for those purposes a certificate which is false in a material particular, shall be guilty of an offence.

(5) A person guilty of an offence under subsection (1) or (4) above shall be liable—

- (a) on summary conviction, to a fine not exceeding £400 ;
- (b) on conviction on indictment, to imprisonment for a term not exceeding two years or a fine, or both.

(6) In this section any reference to sale includes references to barter and exchange.

(7) For the purposes of this section a restricted article is displayed to the public if it is displayed to the public generally or any section of it, and (in either case) whether in return for money or otherwise.

1952 c. 44.

(8) For the purposes of any proceedings under section 45 or 304 of the Customs and Excise Act 1952 (penalties for improper importation and evasion of restriction on importation) for an offence in connection with the importation of anything contrary to section 1 above, this section shall not be taken expressly to provide a penalty for that offence.

Power to restrict places at which live animals may be imported.

5.—(1) If it appears to the Secretary of State desirable to do so for the purpose of assisting the discovery of any importation contrary to section 1 above of any live animal of any of the kinds to which Schedule 1 to this Act for the time being applies, he may make an order under this section relating to any kind of animal.

(2) An order under this section may provide that (subject to such exceptions as may be specified in the order) it is prohibited to do such one or more of the following things as is (or are) specified in the order, that is to say—

- (a) to import by sea any live animal of any kind to which the order is expressed to relate ;
- (b) to import any such animal by sea unless it is imported at a port or one of the ports specified in the order in relation to animals of that kind ;
- (c) to import any such animal by air ;
- (d) to import any such animal by air unless it is unloaded at an airport or one of the airports specified in the order in relation to animals of that kind ;
- (e) to import any such animal by land ;
- (f) to import any such animal by land unless it is brought across the boundary into Northern Ireland at a place or one of the places specified in the order in relation to animals of that kind.

(3) Any prohibition or restriction in any order under this section shall not apply to an animal which the Secretary of State authorises to be imported otherwise than in accordance with the order and which is imported in accordance with that authorisation.

(4) In subsection (2) above—

“airport” means an aerodrome for the time being designated as a customs airport under section 15(5) of the Customs and Excise Act 1952 ;

“port” means any area for the time being appointed and named under section 13(1) of that Act as a port for the purposes of customs and excise.

6.—(1) Where a licence under section 1(2) above has been issued or applied for in respect of the importation of a live animal of any of the kinds to which Schedule 1 to this Act for the time being applies and, after consulting one or more of the scientific authorities, the Secretary of State considers that it is desirable to do so, he may give a direction under this section in relation to the animal.

Restriction of movement of certain live animals after importation.

(2) Where a direction has been given under this section in relation to an animal, and has not been revoked by the Secretary of State, the animal shall, immediately after the relevant event, be taken to and subsequently kept at the specified premises until such time as the Secretary of State may require or permit the animal to be moved to other specified premises or revoke the direction.

(3) Where a direction has been given under this section in relation to an animal, and has not been revoked by the Secretary of State, any person who knows or ought to know that a direction has been so given and who—

(a) knowingly takes the animal, or knowingly permits it to be taken, at any time after the relevant event to premises which he knows or ought to know are not at the time of the taking the specified premises ; or

(b) knowingly moves the animal, or knowingly permits it to be moved, at any time after the relevant event, the circumstances of the removal being that—

(i) it is made from premises which he knows or ought to know are at the time of the removal the specified premises, and

(ii) he knows or ought to know that the removal is made in the absence of, or otherwise than in accordance with any condition attached to, such a requirement or permission as is referred to in subsection (2) above ; or

(c) knowingly keeps the animal at any time after the relevant event at premises which are occupied by him and which he knows or ought to know are not at the time of the keeping the specified premises,

shall be liable on summary conviction to a fine not exceeding £400.

(4) In this section “relevant event” means, in relation to an animal, whichever of the following occurs later :—

- (a) the completion by the animal of any period of detention (whether in quarantine or otherwise) in accordance with any provision made by or under any enactment, being detention connected with the importation in respect of which the direction concerned was given ;
- (b) the departure of the animal from any premises connected with the importation in respect of which the direction concerned was given.

(5) In this section "specified premises" means, in relation to an animal, such premises as are for the time being (and in whatever manner) specified in relation to that animal by the Secretary of State for the purposes of this section.

(6) Proceedings for an offence under subsection (3) above may be brought within a period of six months from the date on which evidence sufficient in the opinion of the prosecutor to warrant the proceedings came to his knowledge ; but no such proceedings shall be brought by virtue of this section more than three years after the commission of the offence.

(7) For the purposes of subsection (6) above—

- (a) a certificate signed by or on behalf of the prosecutor and stating the date on which such evidence as aforesaid came to his knowledge shall be conclusive evidence of that fact ; and
- (b) a certificate stating that matter and purporting to be so signed shall be deemed to be so signed unless the contrary is proved.

(8) In the application of this Act to Scotland—

- (a) subsections (6) and (7) above shall not apply ;
- (b) proceedings for an offence under subsection (3) above may be commenced at any time within six months after the date on which evidence sufficient in the opinion of the Lord Advocate to justify a prosecution comes to his knowledge, or where such evidence is reported to him by the Secretary of State within six months after the date on which it came to the knowledge of the Secretary of State ; but no such proceedings shall be commenced by virtue of this section more than three years after the commission of the offence ;
- (c) for the purposes of paragraph (b) above—
 - (i) a certificate purporting to be signed by or on behalf of the Lord Advocate or the Secretary of State, as the case may be, stating the date on which such evidence as aforesaid came to their knowledge shall be conclusive evidence of that fact ; and

(ii) subsection (3) of section 331 of the Criminal 1975 c. 21.
 Procedure (Scotland) Act 1975 shall have effect as
 it has effect for the purposes of that section.

7.—(1) Before he specifies any premises for the purposes of Provisions
 section 6 above or revokes a direction given under that section, ^{supple-}
 the Secretary of State shall consult one or more of the scientific ^{mentary to}
 authorities. section 6.

(2) The Secretary of State shall not specify any premises for
 those purposes unless they are such that in his opinion the animal
 in relation to which he proposes to give, or has given, a direction
 under section 6 above may suitably be kept there.

(3) Any person duly authorised in writing by the Secretary of
 State may, at any reasonable time and (if required to do so)
 upon producing evidence that he is so authorised, enter any
 premises which are for the time being specified in relation to any
 animal for the purposes of section 6 above for one or both of
 the following purposes:—

(a) in order to enable the Secretary of State to decide whether
 the premises remain such that in his opinion the animal
 may suitably be kept there ;

(b) in order to ascertain whether the animal is being kept on
 the premises.

(4) Any person who wilfully obstructs a person acting under
 subsection (3) above shall be liable on summary conviction to a
 fine not exceeding £400.

8. Where an offence under this Act which has been committed Offences by
 by a body corporate is proved to have been committed with the corporation.
 consent or connivance of, or to be attributable to any neglect
 on the part of, a director, manager, secretary or other similar
 officer of the body corporate, or any person who was purporting
 to act in any such capacity, he, as well as the body corporate,
 shall be guilty of that offence and shall be liable to be proceeded
 against and punished accordingly.

In this section “director”, in relation to a body corporate
 established by or under any enactment for the purpose of
 carrying on under public ownership any industry or part of an
 industry or undertaking, being a body corporate whose affairs
 are managed by its members, means a member of that body
 corporate.

9.—(1) Her Majesty may by Order in Council direct that all Extension
 or any of the provisions of this Act shall extend, subject to such to British
 exceptions, adaptations and modifications, if any, as may be possessions
 specified in the Order, to any of the following countries, etc.
 namely—

(a) any colony other than one for whose external relations a country other than the United Kingdom is responsible ;

(b) any country outside Her Majesty's dominions in which Her Majesty has jurisdiction in right of Her Majesty's Government in the United Kingdom.

1889 c. 63.

(2) Without prejudice to section 37 of the Interpretation Act 1889 (which relates to the exercise of statutory powers between the passing and the commencement of an Act conferring them) an Order under subsection (1) above may be made so as to come into operation at any time before this Act comes into operation in the United Kingdom.

(3) An Order under this section may be varied or revoked by a subsequent Order thereunder.

Financial provisions.

10.—(1) There shall be paid out of money provided by Parliament—

(a) the expenses of any government department in respect of the administration of this Act ;

(b) any increase attributable to this Act in the sums so payable under any other Act.

(2) Any sums received by the Secretary of State under this Act shall be paid into the Consolidated Fund.

Orders.

11.—(1) An order under any of the relevant provisions may be varied or revoked by a subsequent order under the provision concerned.

(2) The power conferred by each of the relevant provisions to make an order shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) In this section “the relevant provisions” means sections 1(5), 3 and 5 above.

Interpretation.

12.—(1) For the purposes of this Act an individual of the family Hominidae (man) is not an animal.

(2) In this Act a reference to a dead animal of any particular kind includes a reference to the body of an animal of that kind—

(a) which is frozen, dried or preserved by chemicals, or

(b) which, although not complete (whether because it has been eviscerated or because it has had the whole of its inside removed and has been stuffed, or for any other reason), is substantially complete and externally substantially resembles the complete body of an animal of the kind concerned.

(3) In this Act a reference to a dead plant of any particular kind includes a reference to a plant of that kind—

(a) which is frozen, dried or preserved by chemicals, or

(b) which, although for any reason not complete, is substantially complete and externally substantially resembles a complete dead plant of the kind concerned.

(4) In this Act “enactment” includes an enactment of the Parliament of Northern Ireland or of the Northern Ireland Assembly and an Order in Council having the same effect as such an enactment.

(5) Except in so far as the context otherwise requires, a reference in this Act to any other enactment is a reference to that enactment as amended, and includes a reference to it as extended or applied, by or under any other enactment, including this Act.

13.—(1) This Act may be cited as the *Endangered Species (Import and Export) Act 1976*. Citation, commencement, repeals, extent, etc.

(2) In the application of this Act to Northern Ireland, for the references to the Secretary of State in sections 1(2), (3) and (4), 2(4), 5(3), 6 and 7 and for the first reference to him in section 1(5) there shall be substituted references to the Department of Agriculture for Northern Ireland.

(3) Subject to subsection (4) below, this Act shall come into operation on such day as the Secretary of State may appoint by order made by statutory instrument; and different days may be appointed in pursuance of this subsection for different provisions of this Act and for such different purposes of the same provision as may be specified in the order.

(4) Any provision of this Act not previously brought into operation, or not previously brought into operation for a particular purpose, shall come into operation or, as the case may be, shall come into operation for that purpose on the expiry of the period of 6 months beginning with the day on which this Act is passed.

(5) The *Importation of Plumage (Prohibition) Act 1921* and *1921 c. 16. the Animals (Restriction of Importation) Act 1964* are hereby *1964 c. 61* repealed.

(6) In section 7 of the *Protection of Birds Act 1954* (restrictions on importation of certain wild birds and eggs) subsection (1) and paragraph (a) of subsection (2) are hereby repealed; and accordingly in paragraph (b) of subsection (2) for “such a licence as aforesaid” there shall be substituted “a licence granted under section ten of this Act” and the word “other” (wherever it occurs) is hereby repealed. *1954 c. 30.*

(7) This Act extends to Northern Ireland.

SCHEDULES

SCHEDULE 1

Sections 1, 3,
and 6.ANIMALS THE IMPORTATION AND EXPORTATION
OF WHICH ARE RESTRICTED

This Schedule applies to the following kinds of animal, namely:—

PART I

MAMMALS

1. All kinds of mammal except the kinds specified in the first column below—

<i>Excepted kind</i>	<i>Common name or names</i>
<i>Marsupials</i>	
Macropus giganteus	Eastern grey kangaroo
Macropus fuliginosus	Western grey kangaroo
<i>Insectivores</i>	
Talpa europaea	Common European mole
<i>Primates</i>	
Macaca rhesus	Rhesus monkey
Macaca nemestrina	Pig-tailed monkey
<i>Rabbits and hares</i>	
Lepus capensis	Brown hare
Oryctolagus cuniculus	European rabbit (otherwise known as domestic rabbit)
<i>Rodents</i>	
Sciurus carolinensis	Grey squirrel
Sciurus vulgaris	Eurasian red squirrel
Castor canadensis	Canadian beaver
Rattus norvegicus	Common rat (otherwise known as laboratory rat)
Rattus rattus	Ship rat (otherwise known as black rat)
Mus musculus	House mouse (otherwise known as laboratory mouse)
Meriones unguiculatus	Clawed jird (otherwise known as Mongolian gerbil)
Any domestic form of Mesocricetus auratus	Domestic golden hamster
Any domestic form of Ondatra zibethicus	Domestic muskrat (otherwise known as musquash)
Cavia porcellus	Domestic guinea pig
Any domestic form of Chinchilla laniger	Domestic chinchilla
Myocastor coypus	Domestic coypu (otherwise known as nutria)

<i>Excepted kind</i>	<i>Common name or names</i>	SCH. 1
<i>Carnivores</i>		
<i>Canis familiaris</i>	Domestic dog	
<i>Vulpes vulpes</i>	Common fox and silver fox	
<i>Alopex lagopus</i>	Arctic fox	
<i>Procyon lotor</i>	North American raccoon	
<i>Procyon cancrivorus</i>	Crab-eating raccoon	
<i>Mustela vison</i>	North American mink	
<i>Mustela furo</i>	Domestic ferret	
<i>Martes zibellina</i>	Sable	
<i>Felis catus</i>	Domestic cat	
<i>Seals</i>		
<i>Callorhinus ursinus</i>	Northern fur seal	
<i>Odd-toed ungulates</i>		
<i>Equus caballus</i>	Domestic horse	
<i>Equus asinus</i>	Domestic donkey	
<i>Equus caballus x asinus</i>	Mule and hinny	
<i>Even-toed ungulates</i>		
Any domestic form of <i>Sus scrofa</i>	Domestic pig	
<i>Lama glama</i>	Domestic llama	
<i>Lama pacos</i>	Domestic alpaca	
Any domestic form of <i>Camelus bactrianus</i>	Domestic bactrian camel	
<i>Camelus dromedarius</i>	Arabian camel	
<i>Dama dama</i>	European fallow deer	
Any domestic form of <i>Rangifer tarandus</i>	Domestic reindeer	
Any domestic form of <i>Bubalus bubalis</i>	Domestic water buffalo	
<i>Bos taurus</i>	Domestic ox	
<i>Bos indicus</i>	Domestic zebu	
<i>Bos frontalis</i>	Domestic gayal	
Any domestic form of <i>Bos grunniens</i>	Domestic yak	
Any domestic form of <i>Capra hircus</i>	Domestic goat	
<i>Ovis aries</i>	Domestic sheep	

BIRDS

2. All kinds of bird except the kinds specified in the first column below—

<i>Waterfowl</i>	
Any domestic form of <i>Anser anser</i>	Domestic goose
Any domestic form of <i>Anser cygnoides</i>	Chinese goose
Any domestic form of <i>Cairina moschata</i>	Muscovy duck
Any domestic form of <i>Anas platyrhynchos</i>	Domestic duck

SCH. 1

*Excepted kind**Common name or names**Gamebirds*

<i>Perdix perdix</i>	Common partridge
<i>Alectoris</i>	Partridges
<i>Lophortyx californica</i>	California quail
<i>Colinus virginianus</i>	Bobwhite quail
<i>Coturnix</i>	Quails
<i>Excalfactoria chinensis</i>	Painted quail (otherwise known as blue-breasted quail)
<i>Bambusicola thoracica</i>	Bamboo partridge
<i>Gallus gallus</i>	Red junglefowl and domestic fowl
<i>Rollulus roulroul</i>	Roulroul partridge
<i>Phasianus colchicus</i>	Common pheasant (otherwise known as ring-necked pheasant)
<i>Phasianus versicolor</i>	Green pheasant
<i>Lophura nycthemera</i>	Silver pheasant
<i>Syrmaticus reevesi</i>	Reeve's pheasant
<i>Chrysolophus</i>	Golden pheasants and Lady Amherst's pheasants
<i>Pavo cristatus</i>	Indian peacock (otherwise known as blue peacock)
<i>Numida</i>	} Spotted guinea-fowls
<i>Guttera</i>	
<i>Acryllium</i>	
Any domestic form of <i>Meleagris gallopavo</i>	Turkey

Cranes

<i>Grus antigone</i>	Sarus crane
<i>Balearica pavonina</i>	Crowned crane

Button quails

<i>Turnix</i>	Button quails
---------------	---------------

Rails

<i>Laterallus leucopyrrhus</i>	Red and white crake
--------------------------------	---------------------

Pigeons and doves

<i>Columba livia</i>	Domestic pigeon
<i>Streptopelia orientalis</i>	Rufous turtle dove
<i>Streptopelia bitorquata</i>	Javanese turtle dove
<i>Streptopelia decaocto</i>	Collared dove
<i>Streptopelia capicola</i>	Ring-necked dove (otherwise known as Cape dove)
<i>Streptopelia tranquebarica</i>	Red turtle dove
<i>Streptopelia chinensis</i>	Spotted dove
<i>Turtur chalcospilos</i>	Green-spotted wood dove
<i>Chalcophaps indica</i>	Green-winged dove
<i>Geopelia striata</i>	Barred dove

Excepted kind

Common name or names

SCH. 1

Pigeons and doves—contd.

<i>Geopelia cuneata</i>	Diamond dove
<i>Ocyphaps lophotes</i>	Crested bronzewing
<i>Phaps chalcoptera</i>	Common bronzewing
<i>Phaps elegans</i>	Brush bronzewing
<i>Zenaida auriculata</i>	Eared dove
<i>Columbina</i>	} Small America ground doves
<i>Scardafella</i>	

Parrots

<i>Trichoglossus haematodus</i>	Rainbow lorikeet
<i>Cacatua sulphurea</i>	Lesser sulphur-crested cockatoo
<i>Cacatua moluccensis</i>	Salmon-crested cockatoo
<i>Cacatua roseicapilla</i>	Galah (otherwise known as roseate cockatoo)
<i>Ara ararauna</i>	Blue and yellow macaw
<i>Ara chloroptera</i>	Red and green macaw
<i>Nandayus nenday</i>	Black-headed conure
<i>Myiopsitta monachus</i>	Monk parakeet (otherwise known as quaker parakeet)
<i>Cyanoliseus patagonus</i>	Patagonian conure
<i>Forpus</i>	Parrotlets
<i>Brotogeris</i>	Small South America parakeets
<i>Poicephalus rueppellii</i>	Ruppell's parrot
<i>Agapornis cana</i>	Madagascan lovebird
<i>Agapornis taranta</i>	Black-winged lovebird
<i>Agapornis roseicollis</i>	Rosy-faced lovebird
<i>Agapornis fischeri</i>	Fischer's lovebird
<i>Agapornis personata</i>	Masked lovebird
<i>Agapornis lilianae</i>	Nyasa lovebird
<i>Agapornis nigrigenis</i>	Black-cheeked lovebird
<i>Loriculus</i>	Hanging parrots
<i>Psittacula eupatria</i>	Alexandrine parrot
<i>Psittacula himalayana</i>	Slaty-headed parrot
<i>Psittacula cyanocephala</i>	Plum-headed parrot
<i>Psittacula roseata</i>	Blossom-headed parrot
<i>Psittacula longicauda</i>	Long-tailed parrot
<i>Psittacula alexandri</i>	Moustached parrot
<i>Amazona aestiva</i>	Blue-fronted Amazon
<i>Amazona ochrocephala</i>	Yellow-headed Amazon
<i>Neophema elegans</i>	Elegant parakeet
<i>Neophema chrysostoma</i>	Blue-winged parakeet
<i>Neophema pulchella</i>	Turquoise parakeet
<i>Neophema bourkii</i>	Bourke's parakeet
<i>Psephotus haematonotus</i>	Red-rumped parakeet
<i>Platycercus eximius</i>	Northern rosella
<i>Platycercus elegans</i>	Crimson rosella
<i>Nymphicus hollandicus</i>	Cockatiel
<i>Melopsittacus undulatus</i>	Budgerigar

Starlings

<i>Lamprolornis</i>	African glossy starlings
<i>Spreo superbus</i>	Superb starling

SCH. 1

*Excepted kind**Common name or names**Starlings—contd.*

<i>Sturnus malabaricus</i>	Malabar starling
<i>Sturnus pagodarum</i>	Pagoda starling
<i>Sturnus roseus</i>	Rose-coloured starling
<i>Sturnus contra</i>	Pied starling
<i>Sturnus burmanicus</i>	Jerdon's starling
<i>Acridotheres</i>	Typical mynahs
<i>Gracula religiosa</i>	Hill mynah

Corvids

<i>Garrulus glandarius</i>	Jay
<i>Garrulus lanceolatus</i>	Lanceolated jay
<i>Cyanocorax yncas</i>	Green jay
<i>Urocissa erythrorhyncha</i>	Red-billed blue magpie
<i>Cissa chinensis</i>	Hunting cissa
<i>Dendrocitta vagabunda</i>	Rufous tree-pie
<i>Corvus</i>	Crows

Babblers

<i>Garrulax albogularis</i>	White-throated laughing-thrush
<i>Garrulax leucolophus</i>	White-crested laughing-thrush
<i>Garrulax monileger</i>	Lesser necklaced laughing-thrush
<i>Garrulax pectoralis</i>	Greater necklaced laughing-thrush
<i>Garrulax rufogularis</i>	Rufous-chinned laughing-thrush
<i>Garrulax canorus</i>	Hwamei laughing-thrush
<i>Garrulax sannio</i>	White-browed laughing-thrush
<i>Garrulax erythrocephalus</i>	Red-headed laughing-thrush
<i>Leiothrix argentauris</i>	Silver-eared mesia
<i>Leiothrix lutea</i>	Pekin robin
<i>Minla cyanouroptera</i>	Blue-winged siva
<i>Heterophasia capistrata</i>	Black-headed sibia
<i>Yuhina</i>	Yuhinas

Bulbuls

<i>Pycnonotus</i>	Typical bulbuls
-------------------	-----------------

Leafbirds

<i>Chloropsis aurifrons</i>	Golden-fronted fruitsucker
<i>Irena puella</i>	Fairy bluebird

Thrushes

<i>Copsychus saularis</i>	Asian magpie-robin
<i>Copsychus malabaricus</i>	Shama
<i>Zoothera citrina</i>	Orange-headed ground thrush

Flycatchers

<i>Niltava sundara</i>	Rufous-bellied niltava
------------------------	------------------------

Dunlocks

<i>Prunella</i>	Dunlocks
-----------------	----------

<i>Excepted kind</i>	<i>Common name or names</i>	SCH. 1
<i>White-eyes</i>		
<i>Zosterops palpebrosa</i>	Oriental white-eye	
<i>Zosterops senegalensis</i>	Yellow white-eye	
<i>Troupials</i>		
<i>Icterus icterus</i>	Troupial	
<i>Finches</i>		
<i>Serinus serinus</i>	Common serin	
Any domestic form of <i>Serinus canaria</i>	Canary	
<i>Serinus atrogularis</i>	Yellow-rumped seed-eater	
<i>Carduelis sinica</i>	Chinese greenfinch	
<i>Carduelis spinoides</i>	Himalayan greenfinch	
<i>Spinus magellanicus</i>	Black-headed siskin	
<i>Carpodacus erythrinus</i>	Common rosefinch (otherwise known as scarlet grosbeak)	
<i>Coccothraustes personatus</i>	Japanese grosbeak	
<i>Coccothraustes migratorius</i>	Yellow-billed grosbeak	
<i>Waxbills</i>		
<i>Lagonosticta</i>	Firefinches	
<i>Estrilda</i>	Typical waxbills	
<i>Uraeginthus</i>	Blue waxbills and violet-ears	
<i>Hypargos niveoguttatus</i>	Peter's twinspot	
<i>Amandava</i>	Avadavats	
<i>Ortygospiza atricollis</i>	Quail finch	
<i>Erythrura prasina</i>	Pintailed parrotfinch	
<i>Lonchura malabarica</i>	Indian silverbill	
<i>Lonchura cantans</i>	African silverbill	
<i>Lonchura griseicapilla</i>	Pearl-headed silverbill	
<i>Lonchura cucullata</i>	Bronze-winged mannikin	
<i>Lonchura bicolor</i>	Pied mannikin	
<i>Lonchura fringilloides</i>	Magpie mannikin	
<i>Lonchura striata</i>	Striated munia and Bengalese finch	
<i>Lonchura punctulata</i>	Spotted munia	
<i>Lonchura malacca</i>	Black-headed munia	
<i>Lonchura maja</i>	White-headed munia	
<i>Lonchura castaneothorax</i>	Chestnut-breasted finch	
<i>Aidemosyna modesta</i>	Cherry finch (otherwise known as plum-capped finch)	
<i>Amadina erythrocephala</i>	Red-headed finch	
<i>Amadina fasciata</i>	Cutthroat	
<i>Padda oryzivora</i>	Java sparrow	
<i>Emblema guttata</i>	Spotted-sided finch (otherwise known as diamond finch)	
<i>Neochmia ruficauda</i>	Star finch	
<i>Poephila guttata</i>	Zebra finch	
<i>Poephila bichenovii</i>	Double-barred finch	
<i>Poephila personata</i>	Masked finch	

SCH. 1

*Excepted kind**Common name or names**Waxbills—contd.*

Poephila acuticauda	Long-tailed finch
Poephila cincta	Black-throated finch (otherwise known as parson's finch)
Chloebeia gouldiae	Gouldian finch

Weavers

Passer luteus	Golden sparrow
Petronia xanthocollis	Yellow-throated sparrow
Sporopipes squamifrons	Scaly-crowned weaver
Ploceus philippinus	Baya weaver
Ploceus intermedius	Lesser masked weaver
Ploceus velatus	Greater masked weaver
Ploceus vitellinus	Vitelline masked weaver
Quelea cardinalis	Cardinal quelea
Euplectes anomalus	Bob-tailed wydah
Euplectes diadematus	Fire-fronted bishop
Euplectes gierowii	Black bishop
Euplectes nigroventris	Black-winged bishop
Euplectes aureus	Golden-backed bishop
Euplectes capensis	Yellow-rumped bishop
Euplectes axillaris	Fan-tailed wydah
Euplectes hartlaubi	Marsh bishop
Euplectes albonotatus	White-winged bishop
Euplectes prognus	Long-tailed bishop
Euplectes jacksoni	Jackson's bishop
Vidua paradisaea	Paradise wydah

Buntings

Emberiza leucocephala	Pine bunting
Emberiza cia	Rock bunting
Emberiza hortulana	Ortolan bunting
Emberiza tahapisi	Cinnamon-breasted bunting
Emberiza elegans	Yellow-throated bunting
Emberiza aureola	Yellow-breasted bunting
Emberiza flaviventris	African golden-breasted bunting
Emberiza melanocephala	Black-headed bunting
Emberiza bruniceps	Red-headed bunting
Melophus lathami	Crested bunting
Sicalis flaveola	Saffron finch
Tiaris	Grassquits
Paroaria	} Cardinals
Cardinalis	
Cyanerpes	Honeycreepers

REPTILES

3. All kinds of reptile except the kinds specified in the first column below—

Geckos

Hemidactylus brookii	Brook's gecko
Hemidactylus flaviviridis	
Hemidactylus frenatus	Bridled house gecko

SCH. 1

*Excepted kind**Common name or names**Geckos—contd.*

Hemidactylus mabouia	Moreau's gecko
Hemidactylus turcicus	Turkish gecko
Lygodactylus picturatus	
Pachydactylus bibronii	Bibron's clawless gecko
Tarentola mauritanica	Moorish gecko
Thecadactylus rapicauda	Turnip-tailed gecko (otherwise known as top-tailed gecko)

Agamids

Agama agama	Margouillat lizard (otherwise known as rainbow lizard)
Agama atricollis	Black-necked agama
Calotes cristatellus	Londok agama
Calotes versicolor	Harlequin lizard (otherwise known as bloodsucker lizard)
Leiolepis belliana	Bell's agama
Physignathus concinnus	

Iguanids

Anolis carolinensis	Carolina anole (otherwise known as green anole)
Tropidurus torquatus	Taraguira lizard (otherwise known as Wied's ring-necked lizard)

Teiids

Ameiva ameiva	Surinam lizard
---------------	----------------

Lacertids

Acanthodactylus boskianus	Daudin's fringe-toed lizard
Acanthodactylus pardalis	Leopard fringe-toed lizard
Lacerta vivipara	Common lizard (otherwise known as viviparous lizard)
Podarcis muralis	Common wall lizard
Podarcis sicula	Italian wall lizard

Cordylids

Cordylus cordylus	Rough-scaled girdled lizard
Gerrhosaurus flavigularis	Yellow-throated plated lizard
Gerrhosaurus major	
Gerrhosaurus nigrigularis	Black-throated plated lizard
Platysaurus guttatus	

Skinks

Chalcides ocellatus	Ocellated skink
Mabuya mabouya	Raddi's skink
Mabuya multifasciata	Many-banded skink
Mabuya striata	Common two-striped skink
Mabuya varia	Savanna variable skink

Anguids

Anguis fragilis	Slow worm
-----------------	-----------

SCH. 1

*Excepted kind**Common name or names**Typical snakes*

Boaedon fuliginosus	Common African house-snake
Coluber constrictor	American racer
Coluber viridiflavus	European whip-snake
Drymarchon corais	Indigo snake
Elaphe guttata	Corn snake
Elaphe obsoleta	American rat snake
Lampropeltis getulus	Common king snake
Malpolon monspessulana	Montpellier snake
Natrix maura	Viperine snake
Natrix natrix	European grass snake
Natrix rhombifera	Rhomb snake
Natrix sipedon	North American water snake
Natrix tessellata	Tessellated snake (otherwise known as diced snake)
Oxybelis aeneus	American vine snake
Oxybelis fulgidus	
Philothammus semivariegatus	
Spalerosophis diadema	Clifford's snake
Thamnophis sauritus	Rippon snake
Thamnophis sirtalis	Common garter snake

Terrapins

Chrysemys picta	Painted terrapin
Chrysemys scripta elegans (otherwise known as Pseudemys scripta elegans)	Red-eared terrapin
Mauremys caspica leprosa (otherwise known as Clemmys caspica leprosa)	Spanish terrapin

Snapping turtles

Chelydra serpentina	Common snapping turtle
---------------------	------------------------

AMPHIBIANS

4. All kinds of amphibian except the kinds specified in the first column below—

Mole salamanders

Ambystoma maculatum	American spotted salamander
Ambystoma tigrinum	Tiger salamander

Newts

Salamandra salamandra	European spotted salamander
Triturus cristatus	Crested newt (otherwise known as warty newt)
Triturus helveticus	Palmate newt
Triturus vulgaris	Common newt (otherwise known as smooth newt)

Tongue-less frogs

Xenopus laevis	African clawed toad
----------------	---------------------

<i>Excepted kind</i>	<i>Common name or names</i>	SCH. 1
<i>Fire bellies and midwives</i>		
<i>Bombina variegata</i>	Yellow-bellied toad	
<i>Discoglossus pictus</i>	Painted frog	
<i>True toads</i>		
<i>Atelopus ignescens</i>		
<i>Bufo bufo</i>	European common toad	
<i>Bufo marinus</i>	Giant toad	
<i>Bufo melanostictus</i>	Asian common toad	
<i>Bufo regularis</i>	African square-marked toad	
<i>Bufo viridis</i>	Green toad	
<i>Narrow-mouthed frogs</i>		
<i>Kaloula pulchra</i>	Malayan bullfrog	
<i>True frogs</i>		
<i>Pyxicephalus delalandei</i> (otherwise known as <i>Rana delalandei</i>)	Delaland's burrowing frog	
<i>Rana angolensis</i>	Angola frog	
<i>Rana cancrivora</i>	Mangrove frog	
<i>Rana catesbeiana</i>	American bullfrog	
<i>Rana chalconota</i>		
<i>Rana esculenta</i>	Edible frog	
<i>Rana ridibunda</i>	Marsh frog	
<i>Rana temporaria</i>	Common European frog	
<i>Rhacophorine tree frogs</i>		
<i>Polypedetes leucomystax</i> (otherwise known as <i>Rhacophorus leucomystax</i>)	Malayan tree frog	
<i>Sedge frogs</i>		
<i>Hyperolius concolor</i>	Hallowell's tree frog	
<i>Hyperolius nasutus</i>		
<i>Hyperolius picturatus</i>		
<i>Hyperolius pusillus</i>		
<i>Arrow-poison frogs</i>		
<i>Dendrobates auratus</i>		
<i>Dendrobates histrionicus</i>		
<i>Paradoxical frogs</i>		
<i>Pseudis paradoxa</i>	Paradoxical frog	
<i>Hylid tree frogs</i>		
<i>Hyla boans</i>	Giant tree frog	
<i>Hyla cinerea</i>	American green tree frog	
<i>Hyla crepitans</i>		
<i>Hyla crucifer</i>	Spring peeper frog	
<i>Hyla meridionalis</i>	Stripeless European tree frog	
<i>Hyla nasica</i>		
<i>Hyla rubra</i>	Daudin's tree frog	
<i>Hyla versicolor</i>		
<i>Phrynohyas venulosa</i>	Warty tree frog	
<i>Similisca baudini</i>	Mexican tree frog	

SCH. 1

PART II

FISH

5. The kinds of fish specified in the first column below—

<i>Restricted kind</i>	<i>Common name or names</i>
<i>Sturgeons</i>	
<i>Acipenser brevirostrum</i>	Shortnose sturgeon
<i>Acipenser fulvescens</i>	Lake sturgeon
<i>Acipenser oxyrhynchus</i>	Atlantic sturgeon
<i>Acipenser sturio</i>	Common sturgeon
<i>Bonytongues</i>	
<i>Arapaima gigas</i>	Arapaima
<i>Scleropages formosus</i>	Asiatic bonytongue
<i>Salmon</i>	
<i>Coregonus alpenae</i>	Longjaw cisco
<i>Salmo chrysogaster</i>	Mexican golden trout
<i>Stenodus leucichthys</i> <i>leucichthys</i>	Inconnu
<i>Carp and suckers</i>	
<i>Chasmistes cujus</i>	Cui-ui
<i>Plagopterus argentissimus</i>	Woundfin
<i>Probarbus jullieni</i>	Ikan temoleh
<i>Ptychocheilus lucius</i>	Colorado squawfish
<i>Toothcarp</i>	
<i>Cynolebias constanciae</i>	} Annual killifish
<i>Cynolebias marmoratus</i>	
<i>Cynolebias minimus</i>	
<i>Cynolebias opalescens</i>	
<i>Cynolebias splendens</i>	
<i>Xiphophorus couchianus</i>	Monterrey platyfish
<i>Coelacanth</i>	
<i>Latimeria chalumnae</i>	Coelacanth
<i>Australian lungfish</i>	
<i>Neoceratodus forsteri</i>	Australian lungfish
<i>Catfish</i>	
<i>Pangasianodon gigas</i>	Giant catfish
<i>Perch</i>	
<i>Stizostedion vitreum glaucum</i>	Blue walleye

INSECTS

SCH. 1

6. The kind of insect specified in the first column below—

<i>Restricted kind</i>	<i>Common name</i>
	<i>Butterflies</i>
Parnassius apollo apollo	Apollo butterfly

MOLLUSCS

7. The kinds of mollusc specified below—

*Restricted kind**Freshwater mussels*

Conradilla caelata
 Cyprogenia aberti
 Dromus dromas
 Epioblasma florentina curtisi (otherwise known as Dysnomia florentina curtisi)
 Epioblasma florentina florentina (otherwise known as Dysnomia florentina florentina)
 Epioblasma sampsoni (otherwise known as Dysnomia sampsoni)
 Epioblasma sulcata perobliqua (otherwise known as Dysnomia sulcata perobliqua)
 Epioblasma torulosa gubernaculum (otherwise known as Dysnomia torulosa gubernaculum)
 Epioblasma torulosa rangiana (otherwise known as Dysnomia torulosa rangiana)
 Epioblasma torulosa torulosa (otherwise known as Dysnomia torulosa torulosa)
 Epioblasma turgidula (otherwise known as Dysnomia turgidula)
 Epioblasma walkeri (otherwise known as Dysnomia walkeri)
 Fusconaia cuneolus
 Fusconaia edgariana
 Fusconaia subrotunda
 Lampsilis brevicula
 Lampsilis higginsii
 Lampsilis orbiculata orbiculata
 Lampsilis satura
 Lampsilis virescens
 Lexingtonia dolabelloides
 Plethobasis cicatricosus
 Plethobasis cooperianus
 Pleurobema clava
 Pleurobema plenum
 Potamilus capax (otherwise known as Proptera capax)
 Quadrula intermedia
 Quadrula sparsa
 Toxolasma cylindrella (otherwise known as Carunculina cylindrella)
 Unio nickliniana (otherwise known as Megaloniaias nickliniana)
 Unio tampicoensis tecomatensis (otherwise known as Lampsilis tampicoensis tecomatensis)
 Villosa trabalis (otherwise known as Micromya trabalis)

SCH. 1

*Restricted kind**Land snails*

Papustyla pulcherrima (otherwise known as *Papuina pulcherrima*)
Paraphanta

Freshwater snails

Coahuilix hubbsi
Cochliopina milleri
Durangonella coahuilae
Mexipyrigus carranzae
Mexipyrigus churinceanus
Mexipyrigus escobedae
Mexipyrigus lugoi
Mexipyrigus mojarralis
Mexipyrigus multilineatus
Mexithauma quadripaludium
Nymphophilus minckleyi
Paludiscala caramba

NOTE: The second column of this Schedule gives a common name or names, where available, and is included by way of guidance only; in the event of any dispute or proceedings, only the first column is to be taken into account.

Sections 1 and
133

SCHEDULE 2

PLANTS THE IMPORTATION AND EXPORTATION OF WHICH
ARE RESTRICTED

This Schedule applies to the kinds of plant specified in the second column below—

<i>Family</i>	<i>Kind</i>
Apocynaceae	Pachypodium
Araceae	Alocasia sanderana
	Alocasia zebrina
Araliaceae	Panax quinquefolius
Araucariaceae	Araucaria araucana
Cactaceae	Cactaceae
Caryocaraceae	Caryocar costaricense
Caryophyllaceae	Gymnocarpos przewalskii
	Melandrium mongolicum
	Silene mongolica
	Stellaria pulvinata
Compositae	Saussurea lappa
Cupressaceae	Fitzroya cupressoides
	Pilgerodendron uviferum
Cyatheaceae	Cyatheaceae
Cycadaceae	Cycadaceae
Dicksoniaceae	Dicksoniaceae
Dioscoreaceae	Dioscorea deltoidea
Euphorbiaceae	Any species of the genus <i>Euphorbia</i> which is a succulent

<i>Family</i>	<i>Kind</i>	<i>SCH. 2</i>
Fagaceae	<i>Quercus copeyensis</i>	
Gentianaceae	<i>Prepusa hookeriana</i>	
Gnetaceae	<i>Gnetum montanum</i>	
Humiriaceae	<i>Vantanea barbourii</i>	
Juglandaceae	<i>Engelhardtia pterocarpa</i>	
Leguminosae	<i>Ammopiptanthus mongolicus</i>	
	<i>Cynometra hemitomophylla</i>	
	<i>Platymiscium pleiostachyum</i>	
	<i>Tachigalia versicolor</i>	
	<i>Thermopsis mongolica</i>	
Liliaceae	<i>Aloe</i>	
Magnoliaceae	<i>Talauma hodgsonii</i>	
Melastomataceae	<i>Lavoisiera itambana</i>	
Meliaceae	<i>Guarea longipetiolata</i>	
	<i>Swietenia humilis</i>	
Moraceae	<i>Batocarpus costaricensis</i>	
Orchidaceae	<i>Orchidaceae</i>	
Palmae	<i>Areca ipot</i>	
	<i>Phoenix hanceana</i> var <i>philippinensis</i>	
	<i>Zalacca clemensiana</i>	
Papaveraceae	<i>Meconopsis regia</i>	
Pinaceae	<i>Abies guatemalensis</i>	
	<i>Abies nebrodensis</i>	
Podocarpaceae	<i>Podocarpus costalis</i>	
	<i>Podocarpus nerifolius</i>	
	<i>Podocarpus parlatorei</i>	
Portulacaceae	<i>Anacampseros</i>	
Primulaceae	<i>Cyclamen</i>	
Proteaceae	<i>Orothamnus zeyheri</i>	
	<i>Protea odorata</i>	
Rubiaceae	<i>Balmea stormae</i>	
Saxifragaceae (Grossulariaceae)	<i>Ribes sardoum</i>	
Solanaceae	<i>Solanum sylvestre</i>	
Stangeriaceae	<i>Stangeriaceae</i>	
Sterculiaceae	<i>Basiloxylon excelsum</i>	
Tetracentraceae	<i>Tetracentron</i>	
Ulmaceae	<i>Celtis aetnensis</i>	
Verbenaceae	<i>Caryopteris mongolica</i>	
Welwitschiaceae	<i>Welwitschiaceae</i>	
Zamiaceae	<i>Zamiaceae</i>	
Zingiberaceae	<i>Hedychium philippinense</i>	
Zygophyllaceae	<i>Guaiacum sanctum</i>	

Sections 1, 3
and 4.

SCHEDULE 3

ITEMS THE IMPORTATION AND EXPORTATION OF WHICH ARE RESTRICTED

This Schedule applies to the following items, namely:—

1. Whale meat and whale offals.
2. Whalebone, if unworked or simply prepared, and hair and waste of whalebone.
3. Whale fat and whale oil (other than sperm oil), whether or not refined or modified.
4. Whalemeat extracts and whalemeat juices.
5. Any tusk (if unworked or simply prepared) of any of the following animals, namely—
 - (a) any animal of the family Elephantidae (elephants);
 - (b) any animal of the family Suidae (pigs);
 - (c) any animal of the species *Monodon monoceros* (narwhal);
 - (d) any animal of the species *Odobenus rosmarus* (walrus);
 and any part of any such tusk and powder and waste of any tusk of any of the animals referred to in sub-paragraphs (a) to (d) of this paragraph.

6. The horn of any animal of the family Rhinocerotidae (rhinoceroses), if unworked or simply prepared, any part of any such horn and powder and waste of any horn of any such animal.

7. Any tooth of any animal, if unworked or simply prepared, any part of any such tooth and powder and waste of any tooth of any animal.

8. The stuffed head, or the skull together with the skin covering it, of any animal of any of the families Elephantidae (elephants) and Rhinocerotidae (rhinoceroses).

9.—(1) Any furskin of a defined animal, if raw, tanned or dressed.

(2) Tanned or dressed furskins of a defined animal or defined animals which are assembled in plates, rectangles, crosses, trapeziums or otherwise.

(3) Any piece or cutting (including the head, tail and any paw) of any furskin of a defined animal.

(4) Any rug, coverlet, coat, jacket, cape or stole made wholly or partly of any furskin of a defined animal (except where the furskin is trimming only).

(5) In this paragraph a defined animal means—

(a) any animal of any of the following genera, namely—

- Aonyx* (clawless otters)
- Genetta* (genets)
- Lutra* (common otters)
- Paradoxurus* (palm civets)
- Paraonyx* (clawless otters)
- Viverra* (civets);

(b) any animal of any of the following species, namely—

SCH. 3

- Acinonyx jubatus* (cheetah)
- Amblonyx cinerea* (oriental small-clawed otter)
- Arctogalidia trivirgata* (small toothed palm civet)
- Chrotogale owstoni* (Owston's banded civet)
- Crocota crocuta* (spotted hyaena)
- Enhydra lutris* (sea otter)
- Felis bengalensis* (leopard cat)
- Felis colocolo* (pampas cat)
- Felis geoffroyi* (Geoffroy's cat)
- Felis guigna* (kodkod)
- Felis jacobita* (mountain cat)
- Felis marmorata* (marbled cat)
- Felis nigripes* (African black footed cat)
- Felis pardalis* (ocelot)
- Felis planiceps* (flat headed cat)
- Felis rubiginosa* (rusty spotted cat)
- Felis serval* (serval)
- Felis silvestris* (European wild cat)
- Felis tigrina* (little spotted cat)
- Felis viverrina* (fishing cat)
- Felis wiedii* (margay cat)
- Fossa fossa* (Malagasy civet)
- Hemigalus derbyanus* (banded palm civet)
- Hyaena brunnea* (brown hyaena)
- Lutrogale perspicillata* (smooth-coated otter)
- Mungos mungo* (banded mongoose)
- Panthera nebulosa* (clouded leopard)
- Panthera onca* (jaguar)
- Panthera pardus* (leopard)
- Panthera tigris* (tiger)
- Panthera uncia* (snow leopard)
- Poiana richardsoni* (African linsang)
- Pteronura brasiliensis* (giant otter)
- Ursus maritimus*, otherwise known as *Thalarctos maritimus* (polar bear)
- Vicugna vicugna* (vicugna)
- Viverricula indica* (small Indian civet) :

(c) any animal of the sub-species *Felis lynx pardina* (Spanish lynx).

10. The skin and scales of any animal of the family *Manidae* (pangolins).

11. Hair, whether or not carded or combed, of any animal of the species *Vicugna vicugna* (vicugna).

12. Yarn made wholly or partly of hair of any animal of the species *Vicugna vicugna* (vicugna).

SCH. 3

13. Fabric made wholly or partly of hair of any animal of the species *Vicugna vicugna* (vicugna) and any coat or jacket made wholly or partly of any such fabric.

14. Musk derived from any animal of the species *Moschus moschiferus* (musk deer).

15. The whole or any part of any raw hide or skin, if fresh, salted, dried, pickled or limed and whether or not split, and the leather, of any animal of the class *Reptilia* (reptiles).

16. The shell and scales, if unworked or simply prepared, the waste of the shell and scales, and the flippers, of any animal of the family *Cheloniidae* (sea turtles).

17. The meat and cartilage, including callipee and callipash, of any animal of the family *Cheloniidae* (sea turtles).

18. The whole shell of any animal of the species *Papustyla pulcherrima*, otherwise known as *Papuina pulcherrima* (green tree snail).

19.—(1) Plumage, that is to say, any feather or feathers, or any skin or any other part with any feather or feathers on it, of any bird or birds, other than excepted plumage.

(2) In sub-paragraph (1) above, excepted plumage means—

(a) plumage which is that only of a bird of any of the following species, namely—

Chrysolophus pictus (golden pheasant)

Gallus gallus (red junglefowl and domestic fowl)

Phasianus colchicus (common pheasant, otherwise known as ring-necked pheasant)

Struthio camelus (ostrich)

Sturnus vulgaris (starling);

(b) plumage which is that only of a bird of any domestic form of any of the following species, namely—

Anas platyrhynchos (domestic duck)

Anser anser (domestic goose)

Anser cygnoides (Chinese goose)

Cairina moschata (Muscovy duck)

Columba livia (domestic pigeon)

Meleagris gallopavo (turkey)

Numida meleagris (Guineafowl);

(c) plumage which consists only of the down feathers of any bird of the species *Somateria mollissima* (eider duck);

(d) plumage which consists only of the train feathers of any bird of the species *Pavo cristatus* (Indian peacock);

(e) plumage none of which falls outside paragraphs (a) to (d) above.

20. Anything made wholly or partly of plumage (within the meaning of paragraph 19 above and subject to the exception there stated).

21. Any egg, whether whole or blown, of any bird other than— SCH. 3

(a) a bird of any of the following species, namely—

Alectoris chukar (chukar)
Alectoris rufa (red-legged partridge)
Coturnix japonica (Japanese quail)
Gallus gallus (red junglefowl and domestic fowl)
Perdix perdix (common partridge) ;

(b) a bird of any domestic form of any of the following species, namely—

Anas platyrhynchos (domestic duck)
Anser anser (domestic goose)
Anser cygnoides (Chinese goose)
Cairina moschata (Muscovy duck)
Meleagris gallopavo (turkey)
Numida meleagris (Guineafowl).

22. The stem of any plant of any of the families Cyatheaceae and Dicksoniaceae (tree ferns).

NOTE: In this Schedule, any common name which appears in brackets after a scientific name is included by way of guidance only ; in the event of any dispute or proceedings, only the scientific name concerned is to be taken into account.